

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 39-004
Amendments to Title 6 of the Chickasaw Nation Code
(Confidential Records)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations concerning the confidentiality of court records, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes, approves, and adopts the following amendments to Title 6, Chapter 2, Section 6-201.17, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 6-201.17 **CONFIDENTIAL RECORDS.**

A. Except as provided by this Section and except as otherwise specifically provided by tribal and federal laws, the following records are confidential and shall not be open to the general public or inspected or their contents disclosed:

1. Deprived Child Court records;
2. Delinquency Court records;
3. Department records;
4. Prosecutor records;
5. Law Enforcement Agency records; and
6. probation records.

B. The limitation of Subsection A of this Section shall not apply to statistical information and other abstract information obtained pursuant to the provisions of the Chickasaw Nation Children's Code.

C. Except as otherwise specifically provided by tribal and federal laws pertaining to educational records, medical records, drug or alcohol treatment records, Law Enforcement Agency records, or social service records, the records listed in Subsection A of this Section shall be confidential and shall be inspected, released, disclosed, corrected or expunged only pursuant to an order of the Court. A subpoena or subpoena duces tecum purporting to compel testimony or disclosure of such information or record shall be invalid.

D. When confidential records may be relevant in a criminal, civil, or administrative proceeding, an order of the Court authorizing the inspection, release, disclosure, correction, or expungement of confidential records shall be entered by the Court only after a judicial review of the records and a determination of necessity pursuant to the following procedure:

1. A motion shall be filed with the Court describing with specificity the confidential records being sought and setting forth in detail the compelling reason why the inspection, release, disclosure, correction, or expungement of confidential records should be ordered by the Court. A motion that does not contain the required specificity or detail may be subject to dismissal by the Court;

2. Upon the filing of the motion, the Court shall set a date for a hearing and shall require notice of not less than twenty (20) days to the agency or person holding the records and to any other interested party. The Court may also enter an ex parte order compelling the person or Department holding the records to either produce the records to the Court on or before the date set for hearing or file an objection to the producing of such records to the Court. The Court may shorten the time allowed for notice due to exigent circumstances;

3. At the hearing, should the Court find that a compelling reason does not exist for the confidential records to be judicially reviewed, the matter shall be dismissed; otherwise, the Court shall order that the records be produced for a judicial review. The hearing may be closed at the discretion of the Court; and

4. The judicial review of the records shall include a determination, with due regard for the confidentiality of the records and the privacy of persons identified in the records, as to whether an order should be entered authorizing the inspection, release, disclosure, correction, or expungement of the records based upon the need for the protection of a legitimate public or private interest.

E. The Court may, for good cause shown, prohibit the release of such confidential records or testimony or authorize a release of the confidential information or testimony upon such conditions as the Court deems necessary and appropriate, subject to the provisions of this Section.

F. Deprived Child Court records which are confidential may be inspected, and the contents may be disclosed, without a court order to the Nation's office of the Prosecutor and the employees of the office of the Prosecutor, including without limitation, its probation officers, pursuant to their lawful duties.

G. The records and their contents disclosed or released in Subsection "F" shall remain confidential and may not be re-released except as permitted by this Title.

~~F~~H. Nothing in this Section shall be construed as:

1. authorizing the inspection of records or the disclosure of information contained in records relating to the provision of benefits or services funded, in whole or in part, with federal funds, except in accordance with federal statutes and regulations governing the receipt or use of such funds;
2. authorizing the disclosure of papers, records, books or other information relating to the adoption of a child required to be kept confidential. The disclosure of such information shall be governed by the provisions of the Chickasaw Nation Adoption Code;
3. abrogating any privilege, including the attorney-client privilege, or affecting any limitation on such privilege found in any other statutes;
4. limiting or otherwise affecting access of Parent(s), Guardian(s), Traditional Custodian(s), their attorneys and other parties to a Deprived Child proceeding to records filed with or submitted to the Court, except that if a request requires a large amount of copies or personnel time, the Court may allow reasonable fees to be charged;
5. prohibiting the Department from summarizing the outcome of an investigation to the person who reported a known or suspected instance of child abuse or neglect or to any person providing services to a child who is or is alleged to be a victim of child abuse;
6. authorizing the disclosure of information which identifies any person who has reported an allegation of known or suspected child abuse or neglect unless such disclosure is specifically ordered by the Court;
7. prohibiting the disclosure of confidential information to any educational institution, facility, or educator to the extent necessary to enable the educator to better provide educational services and activities for a child and provide for the safety of students; or
8. prohibiting the Department from obtaining, without a court order, nondirectory education records pertaining to a child in the legal custody of the Department.

¶I. Any inspection, release, or disclosure of any records under this Section shall be limited only to those records relevant and necessary to accomplish the stated purpose of the inspection, release, or disclosure.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes, approves, and adopts the following amendments to Title 6, Chapter 3, Section 6-302.1, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 6-302.1

CONFIDENTIAL COURT RECORDS.

A. Except as provided by this Section and except as otherwise specifically required by tribal and federal laws, the following records are Confidential and shall not be open to the general public or inspected or their contents disclosed:

1. Delinquent Child Court records;
2. Prosecutor records;
3. Law Enforcement Agency records;
4. Juvenile Probation Officer records; and
5. Delinquent Child mental health records.

B. The limitation of Subsection A of this Section shall not apply to statistical information and other abstract information obtained pursuant to the provisions of the Chickasaw Nation's Children's Code.

C. Except as otherwise specifically provided by tribal and federal laws pertaining to educational records, medical records, drug or alcohol treatment records, Law Enforcement Agency, or social service records, the records listed in Subsection A of this Section shall be Confidential and shall be inspected, released, disclosed, corrected or expunged only pursuant to an order of the Court. A subpoena or subpoena duces tecum purporting to compel testimony or disclosure of such information or record shall be invalid.

D. When Confidential records may be relevant in a criminal, civil, or administrative proceeding, an order of the Court authorizing the inspection, release, disclosure or correction of Confidential records shall be entered by the Court only after a judicial review of the records and a determination of necessity pursuant to the following procedure:

1. A motion shall be filed with the Court describing with specificity the Confidential records being sought and setting forth in detail the compelling reason why the inspection, release, disclosure or correction of Confidential records should be ordered

by the Court. A motion that does not contain the required specificity or detail may be subject to dismissal by the Court;

2. Upon the filing of the motion, the Court shall set a date for a hearing and shall require notice of not less than twenty (20) days to the agency or person holding the records and to any other interested party. The Court may also enter an ex parte order compelling the person or department holding the records to either produce the records to the Court on or before the date set for hearing or file an objection to the producing of such records to the Court. The Court may shorten the time allowed for notice due to exigent circumstances;

3. At the hearing, should the Court find that a compelling reason does not exist for the Confidential records to be judicially reviewed, the matter shall be dismissed; otherwise, the Court shall order that the records be produced for a judicial review; and

4. The judicial review of the records shall include a determination, with due regard for the confidentiality of the records and the privacy of persons identified in the records, as to whether an order should be entered authorizing the inspection, release, disclosure or correction of the records based upon the need for the protection of a legitimate public or private interest.

E. The Court may, for good cause shown, prohibit the release of such Confidential records or testimony or authorize a release of the Confidential information or testimony upon such conditions as the Court deems necessary and appropriate, subject to the provisions of this Section.

F. Delinquent Child Court records which are confidential may be inspected, and the contents may be disclosed, without a court order to the Nation's office of the Prosecutor and the employees of the office of the Prosecutor, including without limitation, its probation officers, pursuant to their lawful duties. The office of the Prosecutor, in its sole discretion, may release any relevant records to Child Welfare Services, or its successor agency.

G. The records and their contents disclosed or released in Subsection "F" shall remain confidential and may not be re-released except as permitted in this Title.

~~F~~H. Any public or private agency, entity, or professional person required to produce Confidential records pursuant to this Section may require payment of reasonable fees from the party seeking the records prior to any records being produced; provided, the Court may waive such costs in a Delinquent action. The Department shall be permitted to assess reasonable fees for records produced.

~~G~~I. Nothing in this Section shall be construed as:

1. authorizing the inspection of records or the disclosure of information contained in records relating to the provision of benefits or services funded, in whole or in part, with federal funds, except in accord with federal statutes and regulations

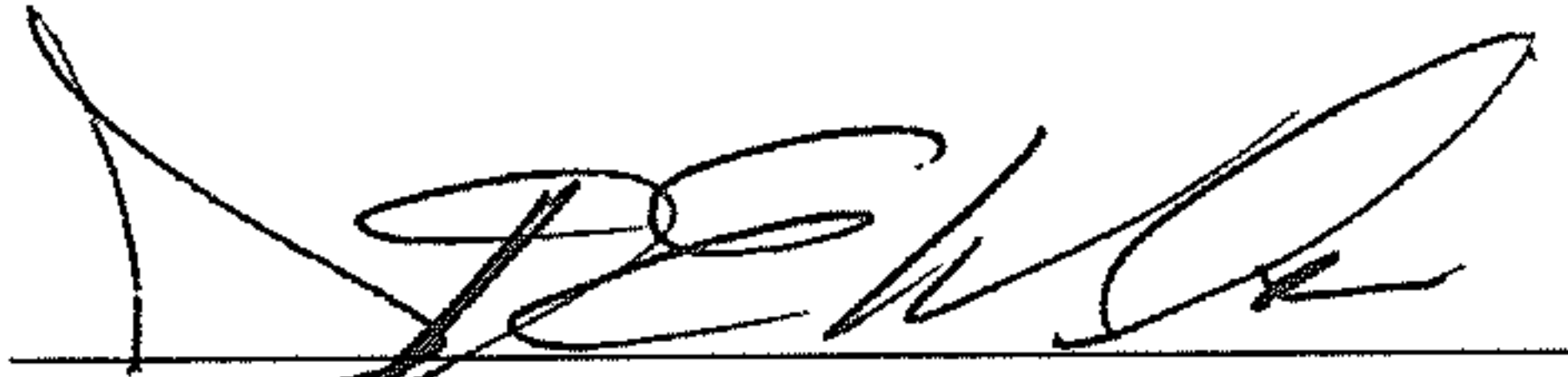
governing the receipt or use of such funds;

2. abrogating any privilege, including the attorney-client privilege, or affecting any limitation on such privilege found in any other statutes;

3. prohibiting the disclosure of Confidential information to any educational institution, facility, or educator to the extent necessary to enable the educator to better provide educational services and activities for a child and provide for the safety of students; or

4. prohibiting the Department from obtaining, without a court order, nondirectory education records.

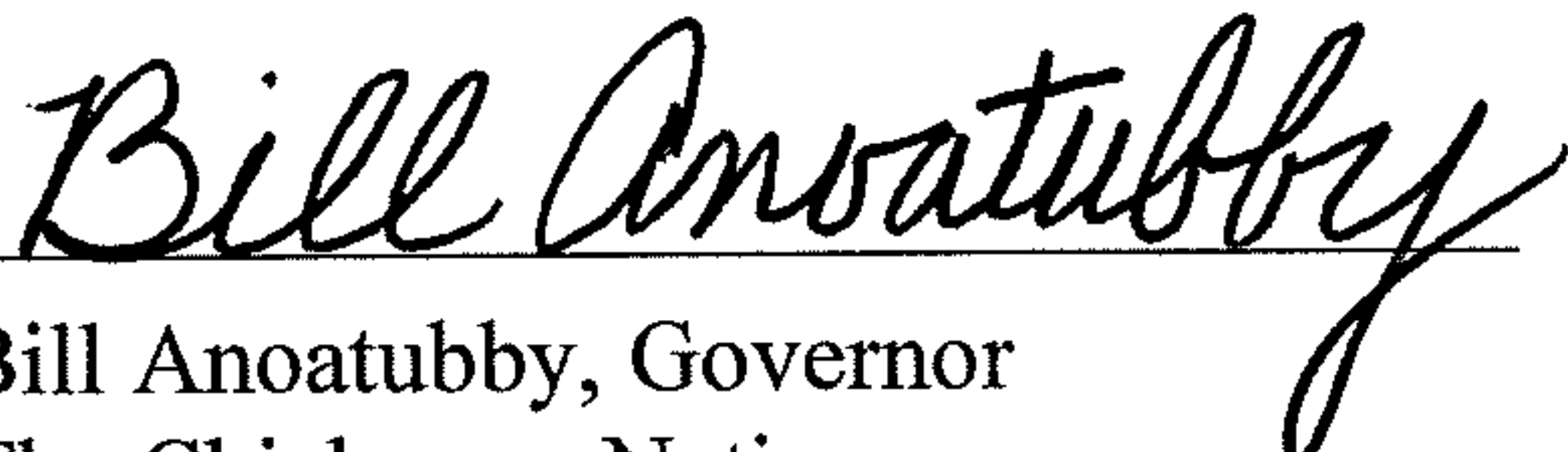
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on February 18, 2022, by a vote of 12 ayes, 0 nays and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: FEB 18 2022

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 39-004
Amendments to Title 6 of the Chickasaw Nation Code
(Confidential Records)
Explanation

Explanation:

This resolution amends two sections in Title 6 of the Chickasaw Nation Code. The new provisions clarify the existing sections on the confidentiality of juvenile court records.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature